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What is 6th AML EU Directive ?

What is the 6th EU AML Directive (AMLD6)?

Directive (EU) 2018/1673 of the European Parliament and of the Council of 23 October 2018 on combating money laundering by criminal law, commonly known as 6AMLD or the Sixth Anti-Money Laundering Directive (criminal) , is an EU legal act that establishes minimum common standards in criminal law across all Member States regarding the offence of money laundering .

Its main goal is to harmonize the definition of money laundering, the underlying predicate offences, criminal liability, and sanctions throughout the European Union. This prevents criminals from exploiting legal differences between Member States (for example, committing a crime in one country and laundering the proceeds in another where the act is either not criminalized or is punished more leniently).

Important note : This directive focuses exclusively on criminal repression (punishment). It does not regulate the preventive obligations of obliged entities (such as banks, lawyers, or notaries). Those obligations are covered by the AML package (AMLD4, AMLD5, and the new 2024 AML package).

Purpose of the 6th AML Directive (Criminal)

The directive requires Member States to criminalize money laundering in a uniform way. Money laundering is an intentional offence - the perpetrator must act with the knowledge that the property is derived from criminal activity.

A key principle is that it makes no distinction between property derived directly from a criminal offence and property derived indirectly . The definition of "proceeds" or "benefit" is intentionally broad.

Unified Definition of "Criminal Activity" (Predicate Offences)

The directive introduces a minimum list of predicate offences. If assets originate from any of these crimes, dealing with them can constitute money laundering.

Member States must criminalize at least the following categories (the directive actually lists 22 specific predicate offences):

Participation in an organised criminal group
Terrorism (including terrorist financing)
Trafficking in human beings and migrant smuggling
Sexual exploitation (including of children)
Illicit drug trafficking
Illicit arms trafficking
Corruption
Fraud (including payment fraud)
Counterfeiting currency and means of payment
Environmental crime
Cybercrime
Kidnapping, murder, extortion
Handling of stolen goods
Tax offences (in certain cases)
and several others (full list in Article 2 of the Directive)

This eliminates situations where an offence is considered a predicate crime in one Member State but not in another.

Strict Definition of the Money Laundering Offence (Article 3)

Member States must punish the following intentional conducts:

The conversion or transfer of property, knowing that such property is derived from criminal activity, for the purpose of concealing or disguising its illicit origin or of assisting any person involved in the criminal activity to evade the legal consequences.
The concealment or disguise of the true nature, source, location, disposition, movement, rights with respect to, or ownership of property, knowing that such property is derived from criminal activity.
The acquisition, possession, or use of property, knowing, at the time of receipt, that such property was derived from criminal activity.

Extended Liability (Article 4)

The following are also punishable:

Aiding and abetting
Inciting
Attempting to commit money laundering

Key Innovations Introduced by AMLD6

Self-laundering - A person who commits the predicate offence and then launders the proceeds themselves can also be prosecuted for money laundering (especially when they actively conceal or integrate the funds into the legitimate economy).
Liability of legal persons (Articles 7-8) - Companies and other legal entities can be held liable if the lack of supervision or control by a person in a leading position made the commission of the offence possible. Sanctions for legal persons include: Exclusion from public benefits, grants, or concessions
Judicial winding-up or temporary/permanent disqualification from commercial activities
Temporary or permanent closure of establishments
Prohibition from carrying out certain business activities

Confiscation (Article 9) - Member States must ensure the possibility of freezing and confiscating both the proceeds of crime and the instrumentalities (tools) used to commit the offence.
Jurisdiction (Article 10) - Clear rules for cross-border cases. In offences committed using information and communication technologies (ICT), jurisdiction lies in the Member State where the technology was used, not necessarily where the physical servers are located.

Deadline for Implementation

Member States were required to transpose the directive into national law by 3 June 2021 (the directive entered into force on 3 December 2020).

Summary of Both "Sixth" AML Directives

1. Sixth Criminal AML Directive (Directive (EU) 2018/1673 - "Criminal" AMLD6) This is the directive described above. Focus: Criminal law and punishment . Main achievements:

Harmonized list of 22 predicate offences

Precise definition of money laundering
Criminalization of self-laundering, aiding, abetting, inciting, and attempt
Liability of legal persons
Minimum penalty of 4 years imprisonment
Rules on confiscation and cross-border jurisdiction

Purpose : To close loopholes in criminal law and prevent criminals from taking advantage of differences between national legal systems.

2. Sixth Preventive AML Directive (Directive (EU) 2024/1640 - "New" AMLD6 from the 2024 package) This is a completely different directive, adopted in May 2024 as part of the new EU AML package (together with the AML Regulation - AMLR and the AMLA Regulation). Focus: Prevention and supervision (not punishment). It replaces and strengthens AMLD4 and AMLD5. Key elements include:

Better organization of national supervision
Enhanced beneficial ownership registers and their interconnection
Creation of a real estate register
Strengthened role of Financial Intelligence Units (FIUs)
Improved cooperation between authorities

Transposition deadline: generally 10 July 2027 .

Simple distinction :

2018/1673 = "How to punish money laundering" (criminal repression)
2024/1640 = "How to prevent and supervise money laundering" (preventive framework)

The Preventive 6th AML Directive - Directive (EU) 2024/1640 ("New" AMLD6)

Directive (EU) 2024/1640 of the European Parliament and of the Council of 31 May 2024 on the mechanisms to be put in place by Member States for the prevention of the use of the financial system for the purposes of money laundering or terrorist financing (commonly called the preventive 6th AML Directive or new AMLD6) forms a key part of the comprehensive EU AML/CFT package adopted in 2024.

This directive repeals and replaces the previous Directive (EU) 2015/849 (AMLD4, as amended by AMLD5). While the Anti-Money Laundering Regulation (AMLR - Regulation (EU) 2024/1624) contains most of the directly applicable rules for obliged entities (the "single rulebook"), the new AMLD6 focuses on institutional and organisational measures that Member States must implement. These include supervision, Financial Intelligence Units (FIUs), registers, and cooperation mechanisms.

The directive entered into force on 9 July 2024 (20 days after publication in the Official Journal on 19 June 2024). Member States must transpose it into national law by 10 July 2027 (with some provisions having earlier or later deadlines).

Main Purpose of the Preventive AMLD6

The directive aims to create a more effective, consistent, and risk-based preventive framework across the EU. It addresses weaknesses identified in the previous system, such as fragmented supervision, inconsistent beneficial ownership transparency, limited cross-border cooperation, and insufficient access to information for FIUs and supervisors.

It strengthens the institutional architecture while supporting the new EU-wide Anti-Money Laundering Authority (AMLA) established by Regulation (EU) 2024/1620.

Key Provisions and Changes Introduced by AMLD6 (Preventive)

1. National and EU-level Risk Assessments Member States must conduct thorough national money laundering and terrorist financing (ML/TF) risk assessments. The European Commission's supranational risk assessment is expanded to cover risks from non-implementation or evasion of targeted financial sanctions.

2. Central Registers of Beneficial Ownership (BO Registers) AMLD6 significantly strengthens the rules on central beneficial ownership registers:

Registers must contain high-quality, up-to-date information on beneficial owners of legal entities, legal arrangements (e.g., trusts), nominee arrangements, and foreign entities with links to the EU.
Registers must be interconnected at EU level via the European Central Platform.
Data must be available in machine-readable format.
FIUs, competent authorities, self-regulatory bodies, and obliged entities have immediate, unfiltered, direct, and free access.
Access for persons with a legitimate interest (e.g., journalists, civil society) is regulated more clearly following CJEU case law, balancing transparency with data protection.
Register authorities receive stronger powers to verify and monitor the accuracy of submitted information.

3. Centralised Automated Mechanisms for Bank and Payment Accounts The directive extends existing central registers (or data retrieval systems) to cover:

Bank accounts, payment accounts, securities accounts, crypto-asset accounts, and safe deposit boxes.
These mechanisms will be interconnected at EU level (Bank Account Registers Interconnection System - BARIS), allowing FIUs and competent authorities to quickly identify account holders across borders.
A single access point for real estate information is also foreseen (transposition deadline: 10 July 2029).

4. Strengthened Role and Powers of Financial Intelligence Units (FIUs)

FIUs receive clearer rules on conducting financial analysis.
Enhanced possibilities for joint analyses of suspicious transactions, including the creation of joint analysis teams with support from AMLA.
Better access to a minimum set of financial, administrative, and law enforcement information.
Improved rules on information exchange with national authorities, obliged entities, and other FIUs.

5. Supervision of Obliged Entities

Member States must ensure effective, impartial, and risk-based supervision of all obliged entities (financial and non-financial).
Preference is given to supervision by independent public authorities.
Supervisors must adopt a risk-based approach, conduct on-site and off-site inspections, and react promptly to breaches.
Enhanced cooperation between home and host supervisors, and the establishment of supervisory colleges (especially for cross-border groups).
Supervisors must share information with FIUs when they detect facts potentially linked to ML/TF.

6. Sanctions and Administrative Measures AMLD6 introduces more detailed and harmonised rules on sanctions for breaches by obliged entities:

Minimum thresholds for pecuniary sanctions (e.g., up to EUR 10 million or more for credit and financial institutions, EUR 5 million for natural persons, with possibilities for higher amounts).
Administrative measures such as orders to remedy deficiencies, restrictions on business activities, or other proportionate sanctions.
Sanctions must be effective, proportionate, and dissuasive.

7. Cooperation and Role of AMLA The directive clarifies the cooperation framework between national supervisors, FIUs, and the new EU AML Authority (AMLA). AMLA plays a central coordinating and convergence role, developing methodologies, benchmarks, and supporting joint actions.

8. Other Important Elements

Rules on the identification and verification of senior management and beneficial owners of obliged entities themselves.
Enhanced whistleblower protection (amending Directive (EU) 2019/1937).
Measures to ensure high-quality data and effective use of technology in registers and supervision.

Transposition Deadlines (Key Exceptions)

General deadline: 10 July 2027
Article 74 (certain aspects of BO register access): 10 July 2025
Articles 11, 12, 13, and 15 (BO registers): 10 July 2026
Article 18 (single access point for real estate): 10 July 2029

Summary - Difference Between the Two "6th" Directives

Criminal 6AMLD (Directive 2018/1673) Focus: Repression and punishment through criminal law. Harmonises the definition of money laundering, predicate offences (22 categories), self-laundering, liability of legal persons, minimum penalties (at least 4 years imprisonment), confiscation, and jurisdiction rules.

Preventive 6AMLD (Directive 2024/1640) Focus: Prevention and institutional framework . Strengthens supervision, beneficial ownership transparency, FIU powers, central registers and their interconnection, risk assessments, and cross-border cooperation. It complements the directly applicable AML Regulation (AMLR), which contains the detailed obligations for obliged entities.

Together with the AMLR and the AMLA Regulation, these acts create a much more harmonised, robust, and effective EU AML/CFT system aimed at closing loopholes and protecting the integrity of the internal market.

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